

GZ: 2020-0.774.665 dated December 6, 2021 (Case Number: DSB-D124.3119)

[Note by the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION RULING

The Data Protection Authority decides on the data protection complaint of Michael Rudolf A*** (complainant) from **** Z*** dated September 16, 2020 against Dr. Joseph N*** (respondent) from **** U*** for violation of the right to confidentiality as follows:

- The complaint is denied.

Legal bases: Art. 9 para. 1 and para. 2 lit. f, Art. 51 para. 1, Art. 57 para. 1 lit. f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1 as amended; § 1 para. 1 and 2, § 18 para. 1, as well as § 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended, and § 9 para. 1, 2 to 4 of the Lawyers' Act (RAO), Federal Law Gazette No. 96/1868 as amended.

REASONING

A. Submissions of the parties and procedural history

1. In his complaint dated September 16, 2020, which was received by the Data Protection Authority on October 15, 2020, the complainant stated the following: The respondent is a lawyer and, in a court proceeding before the Regional Court U***, in which the complainant sued his former employer, presented a medical letter concerning him from the M*** hospitals as evidence on June 4, 2020, without providing information about the origin of the document. By doing so, he unlawfully processed sensitive data concerning the complainant in violation of Art. 9 GDPR and thereby violated the complainant's right to confidentiality according to § 1 para. 1 DSG.

2. A further complaint against M*** Krankenanstalten GmbH has been filed with the Data Protection Authority under case number DSB-D124.3118, which is factually related to this procedure.

3. By procedural order of the Data Protection Authority dated October 20, 2020, GZ: 2020-0.669.745, the respondent was invited to respond.

4. In his response dated October 29, 2020, the respondent countered the complaint as follows: The relevant facts fall under his professional duty of confidentiality as a lawyer, and therefore he cannot provide any information about it.

5. By procedural order of the Data Protection Authority dated November 18, 2020, GZ: 2020-0.728.583, the complainant was granted party status regarding this matter.

6. In his response dated November 23, 2020, the complainant replied to the respondent's submission as follows: As a layperson, he cannot understand why the lawyer's duty of confidentiality applies here. According to § 9 RAO, a lawyer is obliged to maintain confidentiality about matters entrusted to him and facts that have become known to him in his professional capacity, the confidentiality of which is in the interest of his party. However, the complaint is not directed against the party represented by the respondent, but against the respondent personally as their lawyer. From the complainant's perspective, the respondent acted on his own initiative "and somehow obtained highly sensitive data from the clinic." This is not an accusation of a "crime" but of a violation of data protection laws. He therefore maintains his complaint and urgently suggests involving the Bar Association due to a possible violation of professional duties.

B. Subject of the complaint

7. From the submissions of the parties, it is evident that the subject of the proceedings is the question of whether the respondent, as the representative of the parties, violated the complainant's right to confidentiality by presenting a document containing health data of the complainant before the Regional Court U*** on June 4, 2020.

C. Findings of fact

8. The complainant was treated on **. June 2019 in the emergency department (NFA) of the A.ö.

Krankenhaus U***, a hospital operated by M*** Krankenanstalten GmbH, for cocaine intoxication (diagnosis T-50.9 according to ICD-10). Data of the complainant were recorded under patient number *3*345*S*P*2, and in particular, an emergency report concerning the complainant was created, which contains a number of data about the complainant, including:

"A*** Michael, *9.03.199*

from: **.06.2019

Main diagnoses: Cocaine intoxication (T50.9)

Measures in the NFA: no intervention

Course of Action in NFA: Improvement

Triage: Urgency 4 out of 5 (Manchester). Pulse 99/min. Blood pressure 175/97 mmHg, SpO2 91%. Temperature 37.3 °C

Medical History: Patient presents after consuming a total of 6 g of pure cocaine over the last 4 days, with the last intake one hour ago, in addition to alcohol and nicotine consumption. These symptoms are not known from previous consumption, but the source of the cocaine is also new. The quality of the visual disturbance is very variable: "sometimes it shakes, sometimes it is blurry, sometimes nothing..."

Currently experiencing visual disturbances and sensory disturbances in the left arm and legs, abdominal pain (not eaten anything for 2 days, onset 4-5 days ago).

Beginning

Premedication:

Cocaine intoxication

No anticoagulation.

Physical Examination: Good general condition, oriented, awake, pupils react promptly to direct and indirect light.

No edema, hydration adequate, heart and circulation normal. Lungs, breathing normal.

Abdomen soft, slight tenderness,

Heart rate: 99,

Respiratory rate: 145

Blood pressure: 175/97, SpO2: 99

Additional Examinations: Laboratory results attached.

9. A copy of this emergency report has been submitted by the respondent as the attorney and authorized representative of R*** GmbH (defendant) in the labor court dispute file number *2 Cga *32/19i of the Regional Court U*** (claimant: the complainant) during the oral hearing on June 4, 2020, as evidence against a claim made by the complainant against his former employer for payment. The origin of the submitted document is unknown.

10. **Assessment of Evidence:** These findings are based on the statements of the complainant and the documents submitted by him (complaint dated September 16, 2020, entry piece in GZ: 2020-0.669.745). The respondent has not contested the content.

D. Legal Considerations:

D.1. Summary:

11. The complaint has proven to be unfounded, as the actions of the respondent were justified under Art. 9 para. 2 lit f GDPR in conjunction with § 9 para. 1 and 4 RAO.

D.2. Applicable Legal Provisions:

12. The fundamental right to confidentiality enshrined in § 1 DSG, according to its first paragraph, states that everyone, particularly with regard to the respect for their private and family life, has a right to the confidentiality of their personal data, as long as there is a legitimate interest in protecting it, includes the protection of the affected person from the investigation of their data and the transfer of data obtained about them. However, the fundamental right to confidentiality is not absolute and may be restricted by certain permissible interventions.

13. It should be noted that in the present case, a violation of the right to confidentiality under § 1 para.

1 DSG is to be examined, and restrictions on this right arise from § 1 para. 2 DSG.

14. According to § 1 para. 2 DSG, restrictions on the right to confidentiality, insofar as the use of personal data does not occur in the vital interest of the affected person or with their consent, are only permissible to protect overriding legitimate interests of another, whereby interventions by a state authority may only occur based on laws that are necessary for the reasons stated in Art. 8 para. 2 ECHR.

15. However, the GDPR and, in particular, the principles enshrined therein must be taken into account when interpreting the right to confidentiality (see the decision of July 4, 2019, GZ:

DSB-D123.652/0001-DSB/2019, RIS).

16. According to Art. 9 para. 1 GDPR, the processing of personal data revealing racial and ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, as well as the processing of genetic data, biometric data for the unique identification of a natural person, health data, or data concerning a person's sex life or sexual orientation is prohibited. According to Art. 9 para. 2 lit f GDPR, paragraph 1 does not apply if the processing is necessary for the establishment, exercise, or defense of legal claims or for acts of courts in the course of their judicial activity.

17. § 9 para. 1, 2, 3, and 4 RAO (as amended by BGBl. I No. 19/2020, in effect since March 22, 2020) reads:

„§ 9. (1) The lawyer is obliged to conduct the representations undertaken in accordance with the law and to represent the rights of his party against anyone with diligence, loyalty, and conscientiousness. He is authorized to present anything that he deems useful for the representation of his party without reservation, to use their means of attack and defense in any manner that does not conflict with his mandate, his conscience, and the laws.

(1a) [...]

(2) The lawyer is obliged to maintain confidentiality regarding the matters entrusted to him and the facts that have become known to him in his professional capacity, the confidentiality of which is in the interest of his party. He has the right to this confidentiality in judicial and other administrative proceedings in accordance with the procedural regulations. The same applies to the partners and the members of the supervisory bodies of a law firm as provided by law or partnership agreement. If these partners or supervisory bodies are not lawyers, the lawyer must impose confidentiality on them and take sufficient measures to ensure reliable compliance with this obligation; the same applies to the auxiliary staff engaged by the lawyer.

(3) The lawyer's right to confidentiality under paragraph 2, second sentence, may not be circumvented by judicial or other administrative measures, particularly by the questioning of the lawyer's auxiliary staff or by ordering the submission of documents, images, audio, or data carriers, or by their seizure; special regulations for delineating this prohibition remain unaffected.

(4) Insofar as the lawyer's right to confidentiality is required to ensure the protection of the party or the rights and freedoms of other persons or the enforcement of civil claims, the affected person may not invoke the rights of Articles 12 to 22 and Article 34 of Regulation (EU) 2016/679 on the protection of natural persons in relation to the processing of personal data, on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), OJ No. L 119 of 4.5.2016 p. 1 (hereinafter: GDPR), as well as § 1 DSG.

D.3. Data Protection and Professional Confidentiality Obligation of Lawyers:

18. Contrary to the claims made by the complainant, the confidentiality obligation of lawyers according to § 9 para. 2 RAO does indeed have implications for the legal assessment in this matter.

19. First, it should be noted that lawyers, when processing data for the purpose of representing their clients, regularly act as data controllers. While they act under a power of attorney and are thus authorized externally to make legally binding statements on behalf of their clients, the decision regarding which data of third parties are to be processed for the fulfillment of the mandate is made by the lawyer without instruction from the client, subject to proof to the contrary. Any other understanding of the relevant roles of the controller (Art. 4 No. 7 GDPR) or processor (Art. 4 No. 8 GDPR) would be incompatible with the independence of a lawyer in matters of professional practice (see the considerations of the Data Protection Authority in the decision of 9.3.2015, GZ. DSB-

D122.299/0003-DSB/2015, RIS, as well as the considerations of the Federal Administrative Court regarding the responsible role and independence of professional practice for private detectives, decision of June 25, 2019, file number W258 2188466-1, RIS, and court experts, decisions of September 27, 2018, file number W214 2196366-2, RIS, and January 23, 2020, file number W214 2196366-3, RIS).

20.

With the Data Protection Adjustment Act 2018, Federal Law Gazette I 2018/32, a new paragraph 3a was added to § 9. The government draft (65 BlgNR 26. GP 160) initially states that the right to – and consequently the duty of the lawyer to maintain confidentiality – is an indispensable core element of the rule of law and essential for access to justice and the fundamental right to a fair trial, and that the client must be able to trust that by providing information to the lawyer, they do not create evidence against themselves [...] and then continues: “[...] This is ensured by Art. 23 para. 1 lit. i and j GDPR, which allows restrictions on the rights of data subjects in the sense of Art. 12 et seq. GDPR through legal provisions of the Member States when these measures ensure ‘the protection of the data subject or the rights and freedoms of other persons’ or ‘the enforcement of civil law claims.’” The rights of the data subject (in the understanding of Art. 4 no. 1 GDPR) shall only apply to the extent that they do not conflict with the lawyer's right to confidentiality for the protection of the party or the rights and freedoms of other persons or the enforcement of civil law claims. “This is necessary because otherwise there would be a risk that, for example, the (litigating) opponent in a civil dispute could obtain information from the documents and files of the opposing lawyer through the right to information and disclosure under the GDPR, which would be diametrically opposed to the interests of the party represented by that lawyer. Given the multitude of possible constellations here, it is also clear that a general assessment (and order) in advance regarding whether and to what extent this restriction applies is not possible; rather, this must be examined and evaluated based on the specific circumstances of each individual case.” (Explanatory Notes 65 BlgNR 26. GP 160). Paragraph 3a came into force on May 25, 2018 (§ 60 para. 10) (Lehner in Engelhart/Hoffmann/Lehner/Rohregger/Vitek, RAO10 § 9 (as of September 15, 2018, rdb.at), para. 60). By Art. 1 no. 7 Federal Law Gazette I No. 61/2019, the previous paragraph 3a has been designated as paragraph “(4).”

21.

The respondent has now decided to use a document that, at least originally, originates from data processing by M*** Krankenanstalten GmbH, in the interest of its client, R*** GmbH, as evidence in a legal dispute with the appellant, thereby disclosing contents that largely consist of particularly... protected data pursuant to Art. 9 para. 1 GDPR (health data) of the complainant to be transmitted to the Regional Court U***.

22.

It is conceivable, although not proven, that this evidence is the direct or indirect result of a criminal act by unknown persons, such as an offense under § 63 DSG, possibly in conjunction with § 12 StGB, or an administrative offense under § 62 para. 1 no. 2 DSG. So far, there are no clear evidentiary results regarding the source of the data in this proceeding or in the parallel complaint proceeding with case number DSB-D124.3118. Therefore, the appeal of the respondent to his duty of confidentiality as a lawyer is plausible and comprehensible.

23.

According to § 9 para. 3 RAO, the professional duty of confidentiality of a lawyer may not be circumvented in an administrative investigation procedure. It follows that a lawyer who invokes his duty of confidentiality based on § 9 para. 2 RAO cannot be held accountable under Art. 5 para. 2 GDPR, nor can a violation of the duty to cooperate under Art. 31 GDPR be attributed to him or held against him.

24.

As a result, it must be noted that the respondent cannot be compelled to disclose the origin of the document.

D.4. Purposeful Evidence Presentation as the Basis for Lawful Data Processing:

25.

Art. 9 para. 2 lit. f GDPR creates a legal basis for the use of particularly protected data, which includes health data of a data subject, even against the will of the latter in the course of an administrative investigation procedure. The provision can also be invoked (see above, para. 15) as a basis for an intervention in the right to confidentiality.

26.

This regulation aims to prevent a legal claim from being asserted in courts, in an administrative procedure, or extrajudicially (and thus ultimately not enforceable) or the defense position from being weakened because this would not be possible without the processing (especially the disclosure in the procedure) of sensitive data of another person. At the same time, it is stipulated that courts may also process sensitive data (such as health data for calculating pain and suffering damages or for determining other claims) in the course of their judicial activities (especially collecting, recording, storing, and, if necessary, disclosing to other parties involved in the proceedings) that are particularly necessary for the conduct of the proceedings and decision-making ("functionality"). [...] The element of necessity (possibly within the framework of a balancing of interests) must be observed, even if the necessity of specific data may be unclear in disputed claims. (Kastelitz/Hötzendorfer/Tschohl in Knyrim, DatKomm Art 9 GDPR (as of 7.5.2020, rdb.at), para. 45, emphasis not in the original).

27.

Based on the established facts, it is plausible that the submitted document is a suitable piece of evidence

at least

to

strengthen

and

support

the

defense position of R*** GmbH as the defendant. According to § 9 para. 1 sentence 2 RAO, the respondent, as a lawyer, is professionally authorized to use such defense evidence. However, the admissibility of evidence is always to be decided by the authority (administrative authority or court) to which it is presented (DSB, recommendation of 02.03.2017, GZ: DSB-D213.453/0003-DSB/2016, RIS, concerning still § 50a DSG 2000 and the data of an unlawful video surveillance/image processing; see also DSB, decision of 13.12.2019, GZ: DSB-D123.978/0003-DSB/2019, RIS, concerning the non-existent claim for deletion of data from unlawful image processing intended to serve as evidence in a tenancy dispute).

28.

The legislators of the GDPR and the RAO see the effective functioning of the administration of justice, which also includes access to evidence, as an important public interest realized (see especially the teaching opinion cited above under para. 20 with references).

29.

It follows that the respondent was entitled to present the document from an unknown source containing health data of the complainant to the Regional Court U*** as evidence in the labor court process AZ: *2 Cga *32/19i.

D.5. Conclusion:

30.

Since the respondent could rely on the justification under Art. 9 para. 2 lit. f GDPR, he did not unlawfully interfere with the complainant's right to confidentiality.

31.

The complaint was therefore to be dismissed as unfounded in accordance with § 24 para. 5 sentence 3 GDPR.